

Court No. - 21

Case :- WRIT - C No. - 22737 of 2014

Petitioner :- Smt. Bhauneesh Singh Gaur

Respondent :- U.P. Power Corporation Ltd. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Harsh Kumar,J.

Case called out in the revised list. None appears on behalf of the petitioner to press this petition.

In the interest of justice, put up the matter as fresh on 24th April, 2014 showing the name of Sri R.S.Umrao as counsel for the respondent before the appropriate court having jurisdiction in the matter.

Order Date :- 22.4.2014

nd

Court No. - 39

Case :- WRIT - C No. - 22737 of 2014

Petitioner :- Smt. Bhauneesh Singh Gaur

Respondent :- U.P. Power Corporation Ltd. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad, R S Umrao

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

Learned counsel for the petitioner states that the petitioner Smt. Bhauneesh Singh Gaur has since expired and therefore prays for adjournment to move suitable substitution application.

As prayed, the petition is adjourned.

Sri Mahboob Ahmad and Sri R.S.Umrao appear for the respondents, their names may be printed as counsel for the respondents when the matter is listed next.

Order Date :- 24.4.2014

Lbm/-

Court No. - 39

Case :- WRIT - C No. - 22737 of 2014

Petitioner :- Smt. Bhauneesh Singh Gaur

Respondent :- U.P. Power Corporation Ltd. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad, R S Umrao

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

Passed over on the illness slip of Sri Mahboob Ahmad, learned counsel for respondent and as prayed by learned counsel for the petitioner, repeat in the next cause list.

Order Date :- 20.5.2014

Rmk.

Court No. - 39

Case :- WRIT - C No. - 22737 of 2014

Petitioner :- Smt. Bhauneesh Singh Gaur

Respondent :- U.P. Power Corporation Ltd. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad, R S Umrao

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

Passed over on the illness slip of Sri Bal Mukund Singh, learned counsel for the petitioner.

Order Date :- 27.5.2014

Lbm/-

Court No. - 39

Civil Misc. Substitution Application No. 165251 of 2014

In

Case :- WRIT - C No. - 22737 of 2014

Petitioner :- Smt. Bhauneesh Singh Gaur

Respondent :- U.P. Power Corporation Ltd. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad, R S Umrao, S.C.

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

This is an application for substitution of heirs of deceased sole petitioner.

We have heard learned counsel for the parties.

The application is within time and stands allowed.

Office to carry out necessary amendment in the array of the parties.

Order Date :- 6.9.2014

nd

Case :- WRIT - C No. - 22737 of 2014

Petitioner :- Smt. Bhauneesh Singh Gaur

Respondent :- U.P. Power Corporation Ltd. & Another

Counsel for Petitioner :- Bal Mukund Singh

Counsel for Respondent :- Mahboob Ahmad, R S Umrao, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Manoj Kumar Gupta, J.

The petitioner, Smt. Bhauneesh Singh Gaur did not have any electricity meter but was using electricity and on 8.4.2010 applied for One Time Settlement and deposited the O.T.S. amount of Rs.20,024/-. In the month of March to May, 2010, the petitioner received a bill of Rs.13,273/-. The petitioner raised an objection stating that that demand was arbitrary and requested the respondents to instal an electricity meter. Subsequently, for non deposit of the bill, the electricity was disconnected on 1.10.2012, but the same was restored upon depositing a sum of Rs.10,000/- and thereafter an electric meter was installed on 8.12.2012. The petitioner contends that the electricity bills for the period 2010 to 8.12.2012 are required to be revised.

During the pendency of the writ petition, the petitioner Smt. Bhauneesh Singh Gaur died and in her place, her heirs have been substituted. Considering the aforesaid facts that admittedly, no meter was installed and the electricity charges were being raised arbitrarily by the respondents, we dispose of the writ petition with the following direction :-

(1) The petitioner will apply for mutation under para 4.44 of the Electricity Supply Code, 2005. The

competent authority will decide this application within four weeks.

(2) The petitioner will also file an application under para 6.5 of the Electricity Supply Code, 2005 for revision of the electricity bills.

Upon such application being filed, the competent authority will decide the said application by a reasoned and speaking order within four weeks thereafter.

The writ petition is disposed of.

Order Date :- 13.4.2015

skv

(M.K. Gupta, J.) (Tarun Agarwala, J.)